

Track 1 — Chapter Build Pass

MPEP Chapter 100 · Secrecy, Access, National Security, and Foreign Filing

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: A Low-Yield But Occasionally Tested Administrative Chapter

This chapter covers secrecy orders and foreign filing licenses — narrow, rarely-central topics on the exam, but the specific mechanics (automatic license via filing receipt, 6-month default wait) are the kind of clean, factual points that do occasionally appear as standalone questions.

Rule 1: Secrecy Orders (§120)

PLAIN ENGLISH

If a patent application's disclosure appears to affect **national security**, the application is referred to defense agencies for review, and a **secrecy order** may be imposed under 37 C.F.R. §5.2 — barring publication, foreign filing, and disclosure of the invention. While under a secrecy order, prosecution can continue, but publication and issuance are withheld until the order is rescinded.

EXAMPLE

An application disclosing a novel encryption method with clear national security implications is flagged during initial processing and referred for review; if a secrecy order issues, the applicant cannot publish, file abroad, or otherwise publicly disclose the invention until the order is lifted.

QUIZ

What is the effect of a secrecy order on an application?

- (A) The application is immediately abandoned
- (B) Publication, foreign filing, and public disclosure are barred until the order is rescinded
- (C) The application is automatically granted
- (D) Only the claims are affected, not the specification

Rule 2: Foreign Filing License Requirement (§140)

PLAIN ENGLISH

Before filing a patent application (or disclosure of the invention) in a **foreign country**, an inventor generally needs either a **foreign filing license** from the USPTO or must wait 6 months after first filing in the U.S. (absent a license) — this applies when the invention was made in the United States, regardless of the inventor's nationality.

EXAMPLE

An inventor who conceived and developed their invention entirely within the U.S. wants to file a corresponding application in another country only 2 months after their U.S. filing. Without an explicit foreign filing license, they generally must wait out the 6-month period or petition for a license.

QUIZ

What generally allows an inventor to file abroad before the standard waiting period has passed?

- (A) Nothing, foreign filing is always barred for 6 months
- (B) Obtaining a foreign filing license from the USPTO
- (C) Filing only in English-speaking countries
- (D) Filing electronically instead of by mail

Rule 3: Automatic Foreign Filing License via Filing Receipt (§140)

PLAIN ENGLISH

For most inventions (absent a secrecy order or national security flag), a foreign filing license is granted **automatically** and noted on the applicant's filing receipt once the U.S. application is filed — applicants don't usually need to separately petition for one in the ordinary case.

EXAMPLE

A routine mechanical invention with no national security implications receives an automatic foreign filing license as part of the normal filing receipt process, letting the applicant file corresponding foreign applications immediately without a separate petition.

QUIZ

For a typical, non-sensitive invention, how is a foreign filing license usually obtained?

- (A) Only through a lengthy separate petition process
- (B) Automatically, noted on the filing receipt
- (C) It cannot be obtained before 6 months under any circumstances
- (D) Only via a court order

Rule 4: Access to Application Files & Confidentiality (§103)

PLAIN ENGLISH

Pending patent applications are generally kept **in confidence** by the USPTO and not open to public inspection unless published, patented, or specifically referenced in a way that opens access (e.g., a published application, or the applicant grants access). This default confidentiality principle underlies both the secrecy order framework and ordinary application handling.

EXAMPLE

A pending, unpublished application generally cannot be inspected by an unrelated third party — confidentiality is the default rule, and public access typically only opens up once the application publishes (usually at 18 months) or issues as a patent.

QUIZ

What is the default confidentiality status of a pending, unpublished patent application?

- (A) Open to public inspection by anyone
 - (B) Kept in confidence by the USPTO, not publicly accessible
 - (C) Confidential only for the first 30 days
 - (D) Confidential only if the applicant requests it
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. An application's subject matter raises national security concerns and a secrecy order is imposed. Can the applicant still file the application abroad?

- (A) Yes, at any time
- (B) No — foreign filing, publication, and disclosure are barred while the order is in effect
- (C) Yes, but only after the order expires in 6 months automatically
- (D) Yes, if a private buyer purchases the invention

2. An inventor made their invention entirely within the U.S. and wants to file abroad quickly. What generally lets them do this before the standard waiting period?

- (A) A foreign filing license
- (B) A secrecy order
- (C) A certificate of correction
- (D) A terminal disclaimer

3. For a routine, non-sensitive invention, how is a foreign filing license typically obtained?

- (A) Automatically, via the filing receipt
- (B) Only through a formal petition with a hearing
- (C) It cannot be obtained for 12 months
- (D) Only by the assignee, never the inventor

4. What is the default confidentiality status of a pending, unpublished application?

- (A) Fully public
- (B) Confidential, not open to public inspection
- (C) Confidential only on weekends
- (D) Determined solely by the examiner's discretion

Memorize This: Key Tests & Terms

- **Secrecy order:** bars publication, foreign filing, and disclosure; prosecution can still continue domestically.
- **Foreign filing license:** usually granted **automatically** via the filing receipt for non-sensitive inventions; otherwise, must wait 6 months after U.S. filing.
- Applies based on where the invention was **made** (in the U.S.), not the inventor's nationality.
- Pending, unpublished applications are **confidential by default**.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Secrecy Orders (§120)

What is the effect of a secrecy order on an application?

Answer: B

A secrecy order restricts disclosure and foreign filing while allowing continued domestic prosecution — it's a national-security control, not an abandonment or automatic grant.

Rule 2: Foreign Filing License Requirement (§140)

What generally allows an inventor to file abroad before the standard waiting period has passed?

Answer: B

A foreign filing license lets an applicant file abroad sooner than the default 6-month domestic-filing-first period — a license (often granted automatically as part of filing receipt) is the standard mechanism.

Rule 3: Automatic Foreign Filing License via Filing Receipt (§140)

For a typical, non-sensitive invention, how is a foreign filing license usually obtained?

Answer: B

Automatic grant via the filing receipt is the standard, routine path — separate petitions are the exception, reserved for applications not yet filed domestically or with special timing needs.

Rule 4: Access to Application Files & Confidentiality (§103)

What is the default confidentiality status of a pending, unpublished patent application?

Answer: B

Confidentiality is the default rule for pending, unpublished applications — public access generally requires publication or issuance (or another specific exception).

Chapter Close-Out Quiz

1. (B)

A secrecy order specifically bars foreign filing, publication, and disclosure while in effect — it doesn't expire automatically after a fixed period; it must be rescinded.

2. (A)

A foreign filing license (rather than waiting out the default period) is the standard mechanism enabling earlier foreign filing.

3. (A)

Automatic grant via the filing receipt is standard for non-sensitive inventions — separate petitions are the exception.

4. (B)

Confidentiality is the default for pending, unpublished applications, changing generally only upon publication or issuance.

End of Chapter 100 (Secrecy, Access, National Security, and Foreign Filing).